

25NNCV08958 25NNCV08958

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#21 - ONNEL PEREZ ESPIN vs KINNELOA EVA, LLC, et al.

Defendant APEC Group, Inc.'s Motion for Judgment on the Pleadings is DENIED.

APEC's theory depends on facts outside the face of the complaint: the licensure status of APEC and Palacios on the injury date, the existence and legal effect of APEC's workers' compensation coverage, and the conclusion that those facts make Plaintiff APEC's statutory employee and bar the civil action. Plaintiff squarely disputes APEC's attempt to establish those propositions through declarations and requested judicial notice.

That dispute matters here because APEC specifically asks the Court to defeat Plaintiff's Labor Code section 3706 claim by finding, as a present fact, that APEC did not fail to secure compensation and had a policy in force on the date of injury. (Motion, p. 1.) On a motion confined to the pleadings, the Court cannot make that finding by accepting the truth of contested insurance materials or licensing records. (See *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113 ["Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable."].)

APEC's reply quotes complaint allegations that Plaintiff was APEC's employee, that defendants "assumed the responsibility of employing Plaintiff as defendants' own employee," and that APEC operated as a contracting entity on the project. (Reply, p. 2.) Even accepting those quoted allegations,

however, the motion still requires the Court to resolve the separate disputed predicates on which APEC's exclusivity argument rests, including secured compensation and the licensing facts APEC says create statutory employment.

For the same reason, the Court does not rely on APEC's request for judicial notice to establish the truth of the proffered licensing and insurance facts. APEC's request encompasses the complaint and answer, a request for entry of default against Jorge Palacios, licensing records, insurance-related records, and statutes. The Court may notice the existence and filing of the pleadings and statutes, but it does not take judicial notice of the truth of disputed adjudicative facts asserted through the licensing and insurance materials (*Fremont Indemnity*, supra, 148 Cal.App.4th at p. 113.)

Nothing in this ruling rejects the general proposition that workers' compensation exclusivity and Labor Code section 5300 may ultimately require the matter to proceed before the WCAB if the necessary jurisdictional facts are established. The Court holds only that those facts are not established in a manner that permits judgment on the pleadings.

The motion is DENIED. Unless waived by the parties, Moving Party is to give notice.